

“The Road to Hell Is Paved With Good Intentions”: A Historical, Theoretical, and Legal Analysis of Zero-Tolerance Weapons Policies in American Schools

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With the passing of the Gun Free School Act of 1994, the 1990s bore witness to the birth of zero-tolerance policies. During the remainder of that decade, several school shootings occurred that solidified zero-tolerance in schools across the United States. With the possibility of threats constantly increasing, school personnel having a thorough understanding of these policies is critical. In this article, the authors analyze the theoretical, empirical, and legal underpinnings of zero-tolerance weapons policies, then argue that these policies are theoretically unsound, are empirically unsupported, and fall prey to several legal critiques. Last, the authors offer recommendations for principals and teachers that would address problems with *mens rea* and show the value of using threat assessment tools.

Keywords: policy analysis, school discipline, school shooting, school violence, zero tolerance

Introduction

School personnel are in a unique position of being tasked with keeping students' safe, as well as educating and advocating for their well-being. These tasks are arguably never in greater conflict than when a student is caught in possession of a weapon while on school grounds. The initial response of school workers caught in that predicament would be to remove the student in order to ensure safety for remaining students and staff. However, imagine that the student had been a 5-year-old and the weapon had been a red, plastic squirt gun; or if the student was unaware of being in possession of the weapon because of extenuating circumstances. School workers would be remiss to not ask whether such a policy is socially just if it can expel a student for an offense committed without knowledge, or exclude a young child from a year of education for violating a policy that she may be unable to comprehend. It would also be appropriate to inquire about the policy's empirical and theoretical support, as well as how it fits within a legal framework. One policy that has resulted in these types of negative consequences includes zero-tolerance weapons policies that arose out of the Gun Free Schools Act of 1994 (hereby referred to as *GFSA*).

The GFSA was a pivotal piece of legislation that forced primary and secondary school districts in the United States to adopt zero-tolerance weapons policies (Cerrone, 1999). The intent of those policies was to remove weapons from the school environment, and to protect students from threats, assaults, and death. The hope was to achieve these goals through policies that increased the amount of social control present in school districts via a “get tough” approach (Casella, 2003, p. 873). Zero-tolerance policies have been received relatively poorly by media (Brady, 2002), and many high profile cases continue to emerge regarding extreme punishments for seemingly minor infractions (see Martinez, 2009; Skiba & Peterson, 1999). Despite negativity surrounding consequences for violating these policies (Skiba & Peterson, 1999), the original intent of Senator Feinstein and Senator Dorgan when they sponsored the GFSA was to create, “places where children escape the violence that engulfs so many of their lives” (Feinstein, 1994, p. 1). While they had good intentions with the introduction of the GFSA, several unintended consequences have emerged, and as Judge Hamilton eloquently stated in his concurring opinion in support of zero-tolerance policies (*Ratner v. Loudoun County Public Schools*, 2001), “The road to hell is paved with good intentions” (p. 5).

This article shows that zero-tolerance weapons policies propagated from the GFSA have not been empirically supported, are theoretically unsound, and fail to satisfy Model Penal Code criteria for a punishment policy. That thesis

will be supported by first justifying the use of social control theory (Hirschi, 1969) in analyzing zero-tolerance weapons policies and then applying it to those policies. Next, we explore the history of zero-tolerance policy in the United States and discuss a historical overview of legal precedents as they apply to zero tolerance. Then, we explore a theoretical and legal analysis of zero-tolerance policy within the framework of social control theory (Hirschi, 1969) and the Model Penal Code (American Law Institute, 1962). Last, we make recommendations regarding improvements in zero-tolerance policies.

History of zero tolerance

After 1989 and before the passing of the GFSA schools across the United States began adopted varying degrees of zero-tolerance policies for infractions like weapons possession, disruption, drugs, or gang activity (Skiba & Peterson, 1999). According to Senator Feinstein's report (1994) on expulsion procedures for weapon possession in schools, states' responses to expulsion varied noticeably. For example, Kentucky was able to suspend or expel students for weapons possession only after their "due process" had been fulfilled (Feinstein, 1994, p. 11). However, discussion of due process was a rarity in the report, and most of the other states did not explicitly specify student entitlement to due process despite prior court precedents (see *Goss v. Lopez*, 1975).

The passing of the GFSA was a broad approach to increase social control present in schools. In Feinstein's (1994) report to congress she indicated that schools were losing control of students, and current policies were not doing enough to assert control over the student population, especially in large urban schools. The passing of the GFSA, and subsequent zero-tolerance policies created because of it, was a sweeping attempt to take back control of schools and provide districts with the power to increase social control in order to prevent violence.

The era of deadly school shootings likely resulted in a rebirth and solidifying of zero-tolerance weapons policy (Brady, 2002). However, 5 years before Columbine all primary and secondary schools in the United States were mandated by federal policy (e.g. GFSA, 1994) to adopt zero-tolerance weapons policies if they wished to continue receiving federal funding for education. Punishment for violation of this policy was expulsion, except if a student's expulsion would violate the Individuals With Disabilities Education Act, or in the event that there were extreme extenuating circumstances.

In cases of extreme extenuating circumstances the GFSA allowed chief administrative officers (e.g. school personnel in charge of assigning discipline) discretion to wave the mandated expulsion of a student. However, as discovered by Polakow-Suransky (1999) in their examination of expul-

sions in Michigan school districts, "... school officials often apply the policy in an arbitrary and capricious manner" (p. 1). This means that although chief administrative officers had discretionary power, their assignment of punishment to students was often not rationally related to the facts of the case. That lack of appropriate use of discretionary power is a principal weakness of the zero-tolerance weapons policies. As a note, the terms zero-tolerance weapons policies and GFSA are used interchangeably throughout the remainder of the article.

Analysis

Theoretical analysis

When examining a policy through a theoretical lens, it is important to provide justification for the use of that theoretical framework. Without that justification, questions can be appropriately raised regarding the validity of the selected theory. For that reason, the following theoretical analysis provides a brief overview and justification for the use of social control theory (Hirschi, 1969).

Historical overview. The beginnings of social control theory can be seen in E. A. Ross' (1901) work *Social Control*. In it, Ross establishes the need and relevance of social control to legal concerns, and began to assert one of the basic tenets of *social control theory*, which is the Hobbesian assumption that, "... we are all animals and thus naturally capable of committing criminal acts" (Hirschi, 1969, p. 31). Therefore, humans need to be controlled through social mechanisms. The next major advance occurred with Nye (1958), when he was able to identify a means to measure social control. Hirschi (1969) then built on the previous developments of the theory and identified four key components of social control: attachment, commitment, involvement, and belief. Those four parts allow for an in-depth analysis of the theoretical soundness of punishment policies, including zero-tolerance weapons policies.

Justifications. There are two main justifications for selecting social control theory in analyzing zero-tolerance weapons policies. First, these policies serve as a deterrent, as evidenced by the policy's goals. Second, the wording of the policy and subsequent court decisions demonstrate the belief that school districts buy into the Hobbesian assumption and believe that any weapon on school grounds present a risk for every student, even if the possession of the weapon is unknown. For these reasons, social control theory provides a relevant and informative framework to analyze the theoretical soundness of zero-tolerance policies. To analyze these policies from a social control perspective, the question should be asked of how the policy affects Hirschi's (1969)

Table 1. Historic Court Cases Affecting Zero Tolerance Policy

<i>Court Case (Year)</i>	<i>Ruling</i>
Tinker v. Des Moines ISD (1969)	Supreme Court ruled that students maintain some Constitutional rights while in school, such as the freedom of speech.
San Antonio ISD v. Rodriguez (1973)	Education is not guaranteed by the US Constitution. However, students' right to attend school is protected by the Constitution if their state of residency legally requires school attendance.
Goss v. Lopez (1975)	Students could not be removed from school without minimum due process procedures being in place. These included the requirement that a student be notified of removal from school and providing the student with an opportunity to have a hearing.
Seal v. Morgan (2000)	Mens rea* recognized as a requirement for expulsions. Therefore, school districts would have the burden of having to show that students in violation of zero tolerance had knowledge of having a weapon and intent to use it.
Bundick v. Bay City ISD (2001)	School districts did not have to show knowledge or intent of a student possessing a weapon. Instead, the court found that strict liability** was enough to expel a student.
Butler v. Rio Rancho (2003)	The idea of strict liability** further supported. All that was needed in order for a school district to expel a student was possession of a weapon. The district did not have to show knowledge or intent.

*Mens rea: Having knowledge and intent to commit a crime.

**Strict liability: Possession of the weapon enough to expel.

four components of social control: attachment, commitment, involvement, and belief.

Attachment. In social control theory, *attachment* can be defined as an individual's relationship with the family unit (Wiatrowski, Griswold, & Roberts, 1981). The effect of zero tolerance on the family unit is difficult to determine, as stated by the American Psychological Association Task Force on Zero Tolerance (2008): "... research in this area is insufficiently rigorous or wide-ranging to justify strong statements..." (p. 856). At minimum, it could be argued that long-term suspension or expulsion would affect attachment in one of two ways. Either it could add strain to a family unit, which could decrease cohesion in the family, or it could expose students to increased time in an environment that already lacks attachment (e.g., home). The latter has been discussed as a negative unintended consequence of long-term suspension or expulsion. For example, Taras et al. (2003) discussed the effect of suspension and expulsions on students and reported that "... children most likely to be suspended or expelled are those most in need of adult supervision and professional help" (p. 1207). Therefore, the school environment might have been the only structured and supervised environment in a student's life. Removing that environment has a possibility of increasing risk for antisocial behavior (Taras et al., 2003). Also, a policy that results in expulsion will severe any positive attachment students may have in school, since expulsions minimally bar students from returning to school for the remainder of the year. While students who violate zero-tolerance policies may not have strong attachment at home, there is a possibility that they have an attachment to a parental figure at school. Severing any of those attachments is not theoretically sound for an effective social control policy.

Commitment and involvement. Commitment and involvement are highly related concepts in Hirschi's (1969) social control theory. Commitment refers to the pursuit and desire to increase status through socially acceptable means; whereas, involvement is the pursuit or participation in socially acceptable activities (Wiatrowski, Griswold, & Roberts, 1981). These areas are negatively affected by zero-tolerance policies since expulsion directly decreases a students' ability for involvement in school related activities, and would also likely decrease commitment.

Imagine the example discussed during the court's decision in Seal v. Morgan (2000), in which the judges proposed a fictional story where a "valedictorian" was framed by having a weapon "planted in his backpack without his knowledge by a vindictive student" (p. 12). Before the imaginary incident occurred the student could have been classified as having a high level of commitment and involvement, as evidenced by being the valedictorian. If he were to be found with the weapon that he had no knowledge of possessing, he would have a reasonably high chance of being expelled under the guise of zero tolerance.

As a result of the last two major court decisions regarding zero-tolerance weapons violation (Bundick v. Bay City Independent School District, 2001; Butler v. Rio Rancho Public School Board of Education, 2003) it is unlikely that the expulsion would be overturned through any challenges, but students might face having a report in their permanent record. Also, the expulsion for a minimum of 1 year could affect the student's grades and progress through coursework in such a way that may affect his ability to attain a higher education. As a result of those consequences, there is a strong possibility that the valedictorian, who possessed a high level of commitment and involvement before the incident, would now be faced with an experience that

negatively affects his commitment and involvement in a way that contradicts appropriate social control mechanisms.

Belief. Wiatrowski, Griswold, and Roberts (1981) eloquently described Hirschi's idea of belief as the "acceptance of the moral validity of the central social-value system" (p. 525). It is the agreement with the rules, values, and norms of the society an individual resides in. As in the previous example regarding the valedictorian, the student would lose not only commitment and involvement but also his belief in society. The negative effect on those three aspects of social control, as well as the effect on attachment suggests that the student who was once a valedictorian would now run an increased risk of becoming a delinquent.

Historic legal challenges

The question may be asked by certain school personnel, such as school social workers, why they should be familiar with legal precedents for policies like zero tolerance. However, since the beginning of social work's existence the profession has been tied to policy and law (see Stuart, 1999). Advocating for policy and law changes was an important historical contribution to social work's attempt to become a profession, and as Madden (2000) stated, "If the social work profession is to be in control of its future, it must become committed to the role of exerting influence on the legal system through education, advocacy and proactive legal policy development" (p. 3). It is also crucial for administrators to understand legal precedents as they face increasing legal challenges for disciplinary decisions they make.

The GFSA mandated school districts adopt zero-tolerance policies, but many of the parameters of how the policy would be implemented were left up to individual states. After the policies were installed, several state and federal courts were tasked with being the final voice in whether the parameters laid out were constitutional. Several historical court cases will be discussed in the subsequent analysis. However, this review is by no means a comprehensive review of all court proceedings regarding zero-tolerance weapons policy. For a more complete review see Cerrone (1999), Insley (2001), Wasser (1999), or Pelliccioni (2003).

The first and arguably most important argument in the courts has been whether the extended suspension or expulsion of students is a constitutional issue. Perhaps the strongest statement made regarding students' constitutional rights was the landmark U.S. Supreme Court case *Tinker v. Des Moines Independent School District* (1969). The case involved students wearing black armbands to school in protest of the Vietnam War. They were subsequently suspended until such time that they were willing to return without armbands. The court supported the students' first amendment rights, and in the supporting opinion Justice Fortas made the historic statement that "it can hardly be argued that either students or teachers shed their

constitutional rights to freedom of speech or expression at the schoolhouse gate" (para. 9).

Since students maintain some constitutional rights while at school, the next critically important question is whether removal from school by means of suspension or expulsion are within the purview of the U.S. Constitution. The answer to that question was unequivocally answered in *Goss v. Lopez* (1975). In that case, several students had been suspended for disruption and destruction of school property. The school in question had a process for expulsion, which included a method for having a hearing if the expulsion was challenged. However, short-term suspensions did not have a procedure in place for a hearing. The opinion of the court was that if a state requires students to attend school, then education is considered a property right of students. Therefore, it could not be removed without due process. That due process included informing the student of their removal and allowing the student to have a hearing. While the court did not directly address long-term suspensions or expulsions, it required a minimal effort at having procedural elements involved in short-term suspensions.

Because students have constitutional rights at school and their attendance is a constitutional concern, it is beneficial to examine the conflicting court cases that addressed the controversial ideas of mens rea and strict liability. *Mens rea* is a Latin phrase loosely meaning "guilty mind" (Packer, 1962, p. 108). It has historically had conflicting and varied definitions (Sayre, 1932). However, it consists of two major components: Individuals must be aware that what they are doing is wrong, and they must have intended to do wrong (Packer, 1962). In criminal law, the concept of mens rea has been a critical part of the determination of criminal intent and has been quoted as follows:

... a sacred principle of criminal jurisprudence, that the intention to commit the crime, is of the essence of the crime, and to hold, that a man shall be held criminally responsible for an offense, of the commission of which he was ignorant at the time, would be intolerable tyranny (*Duncan v. State*, 1846; as cited in Sayre, 1932, p. 974).

Unlike mens rea, strict liability does not require knowledge of wrongdoing or intent to engage in wrongdoing. All that is required is that an individual is engaged in an illegal activity, or was caught with contraband (Hamdani, 2007).

The first court case addressing mens rea in regards to the GFSA involved a student who was expelled for having a knife in his vehicle (*Seal v. Morgan*, 2000). He claimed that he had no knowledge of having a knife in his car, and according to court opinion, there was no evidence to the contrary. The court found that mens rea was not present despite Seal being aware that a friend had the knife in his car the day before. According to the court's opinion, Seal's assumption that his friend had removed the knife the previous night was enough to determine that he had no knowledge of the knife. The decision that mens rea was an important consideration in these types of expulsions was a

step by the court to correct a potential flaw in zero-tolerance policies, and they stated:

...suspending or expelling a student for weapons possession, even if the student did not knowingly possess any weapon, would not be rationally related to any legitimate state interest. No student can use a weapon to injure another person, to disrupt school operations, or, for that matter, any other purpose if the student is totally unaware of its presence (pp. 11–12).

The court's opinion in *Seal v. Morgan* (2000) set the precedent for mens rea being a requirement for expulsions because of zero-tolerance violations. Thus, the school was found to have violated Seal's rights because the expulsion was not rationally related to possessing a weapon that he did not know he possessed. Before this case, chief administrative officers (GFSA, 1994) of schools were allowed to forgo expulsion for two reasons. First, as previously mentioned, expulsion was prohibited if it violated the Individuals With Disabilities Education Act (1997). Second, expulsion was prohibited if there were extenuating circumstances. However, before *Seal v. Morgan* (2000) the application of zero-tolerance policies was handled from a strict liability framework.

The effect of *Seal v. Morgan* (2000) on school districts would have been substantial given that it would have forced schools to rethink their disciplinary procedures for weapon possession. It would no longer be acceptable to expel a student simply for possessing a weapon. Instead, the school would be tasked with determining whether the student was aware that he or she was in possession of a weapon and had intent to use it. However, not long after *Seal v. Morgan* (2000) another case challenged that court's ruling.

The second court case, which directly contradicted *Seal v. Morgan* (2000) was *Bundick v. Bay City Independent School District* (2001). Similar to Seal, Bundick was caught in possession of a blade weapon on school grounds and was subsequently expelled. The difference between the two cases was that the court decided with Bundick that mens rea could be assumed because Bundick was aware that the weapon was in his truck the night before. The court also contradicted *Seal v. Morgan* (2000) by saying that the use of strict liability for weapons possession in school was rationally related to goals of school safety. They stated:

To be arbitrary and capricious in violation of a student's right to substantive due process, a school discipline decision must be patently unreasonable, in total disregard of the circumstances, and lacking any basis to reasonably arrive at the same conclusion (p. 9).

The court simply did not believe that mens rea was a requirement of guilt, and felt that the educational environment was at risk by the presence of a weapon despite no students having knowledge of its presence. This underlying view regarding the inherent nature of students being violent (i.e., Hobbesian assumption) and the mere presence

of a weapon being dangerous despite no knowledge of its existence further reinforces the view that these policies are social control mechanisms. This was further reinforced in the Butler case (2003) wherein the judges found that Butler knew, or should have known, that he was "responsible for the vehicle he brought onto school property and the contents thereof" (Lewis, 2004, p. 785).

The court cases previously mentioned provide a glimpse into legal precedents surrounding zero-tolerance weapons policies, and allow for a more complete analysis of those policies. What is clear is that while students' rights may be limited while they attend school, they still possess some basic constitutional rights. Education may not be guaranteed by the U.S. Constitution (see *San Antonio Independent School District v. Rodriguez*, 1973), but students have a property interest protected by the Constitution if their state of residency requires school attendance. Therefore, students cannot be removed from school without respecting their due process rights. However, the question of whether or not mens rea is needed to meet schools' goals of safety is much more convoluted, as evidenced by conflicting court opinions. What is not in disagreement across the court opinions is that the intent of zero-tolerance weapons policies is to keep weapons out of the school and to ensure school safety.

Empirical evidence

For a policy to be tested empirically, its objectives must be stated in a way that allows them to be operationalized. Given the speeches made by co-sponsors of the bill and the wording of the GFSA, it becomes possible to identify and operationalize the goals of the policy. Senator Feinstein, one of the co-sponsors, stated in a speech regarding the policy that

...guns have no place in the hands of our children or in the hallways and classrooms of their schools. Children should be able to go to school without fearing for their safety. Our schools should be safe havens—places where children escape the violence that engulfs so many of their lives. The time has come to remove guns from the schools of America (Feinstein, 1994, p. 1).

Therefore, the GFSA can be reasonably argued to have two intended goals. The first is to reduce weapon possession on school grounds. The second, and arguably the most important, was the reduction of violence in school or at school sponsored events.

A helpful stipulation of the policy which assists in the examination of the empirical support behind these policies is the mandate that districts report the number of students who violate the policy and the type of weapon that was involved to the federal government (GFSA, 1994). Therefore, to show that the policy has had an effect on the two goals, their occurrence should have decreased after the passage of the GFSA. Data that would indicate changes and

trends in regards to zero-tolerance violations is collected and published annually in a joint effort between the U.S. Department of Education and the Department of Justice (i.e. *The Indicators of School Crime and Safety*). As a statistical note, these results are (at most) only suggestive of the effectiveness of zero-tolerance weapons policies.

The latest issue of *The Indicators of School Crime and Safety* report provides a comprehensive view of variables related to school safety from the 1992–1993 to 2008–2009 school years. In order to address the question of empirical validity for the GFSA the variables of weapons possession and threats or injuries from weapons can be examined. It is also beneficial to examine the prevalence of homicides at school as being killed while at school is the ultimate violation of the policy's goals.

In response to the first goal of decreasing weapons at school, the latest issue of *The Indicators of School Crime and Safety* report (Robers, Zhang, & Truman, 2010) indicates that weapon possession in the total student population decreased from 12% in 1993 to 6% in 1999. That result suggests that zero-tolerance weapons policies may be an effective deterrence. However, for that suggestion to hold true, all of the student populations should show a decrease in weapons possession over the same timeframe. Otherwise, the effect of zero-tolerance weapons policies as a deterrent would be suspect since it was intended to decrease weapons possession across the student population, not just for a single demographic. When the data for weapons possession is separated into gender there is no longer a significant decrease in weapons possession. For example, female weapons possession decreased from around 5% in 1993 to around 4% in 1999 (Robers, Zhang, & Truman, 2010). Therefore, it is possible that zero-tolerance weapons policies have decreased male weapon possession; whereas, the data for female students suggests that these policies are not as effective a deterrent across demographics. The possible connection between zero-tolerance policies and the decrease in male weapon possession in school should not be understated since the policies do appear to have some connection with that demographic. However, as can be seen by female weapon possession data, the policy by itself might not accomplish its goal of being a blanket policy (all encompassing) that significantly decreases weapon possession across all demographics.

The next relevant variable to examine is the prevalence of threats and injuries from weapons while on school grounds. From 1993 to 2009, there was not a large difference in the percentage of students who have been either injured or threatened with a weapon on school grounds. Although it does not appear to be slightly higher, from 1993 to 2009 the percentage of students injured or threatened went from 7% to 9% (Robers, Zhang, & Truman, 2010). This result appears to contradict the male results from weapons possession variable. However, it is possible that there is a connection between the decreasing rates of weapon possession with males and the slight increase in students being threat-

ened or injured with a weapon. An argument could be made that fewer male students are bringing weapons to school, but are being violent to a higher number of students than before the passing of the GFSA. Thus, if there is not a connection between the rates of weapon possession and number of students threatened or injured by weapons, then the data would suggest that the GFSA is not entirely meeting this objective. On the other hand, if there is a connection between the variables and fewer students are bringing weapons on school grounds, but are being violent to a higher number of students, then the policy might be meeting its first explicit goal. However, it would be doing poorly in regards to its arguably most important goal, reduction of violence.

Last, data regarding homicides at school are relevant because homicides are arguably the most extreme form of school violence. The number of homicides at school in the 2 years before the passage of the GFSA was 34 and 29 students, respectively (Robers, Zhang, & Truman, 2010). In the 4 years after passage of the policy, student homicides reached 34 students in the 1997–1998 school year. Then, a major decrease in student homicides occurred after the 1998–1999 school year, and homicides for the 1999–2000 school year hit a low of 14. After that year, the number of homicides fluctuated. From 2003–2006, there were between 20 and 23 homicides at school each school year, with another high occurring in the 2006–2007 school year ($n = 31$). In the most recent year for which data are available (2008–2009), there had been 15 homicides at school. At best, the data on school homicides are confusing because of the fluctuation throughout the years, and the data do not yield any clearly interpretable results. They simply fluctuated too much to be able to suggest any significant relation to zero-tolerance weapons policies.

Overall, data does not appear to provide conclusive empirical evidence to suggest that the GFSA has been effective in meeting its goals. While there is not conclusive empirical support for zero-tolerance weapons policies, data for male weapon possession in schools shows some promise. However, when examined in relation to other variables such as threat and injuries from weapons, and homicides at school, empirical support becomes more suspect. Others have also noted similar contradictory findings regarding empirical support for zero-tolerance policies (see American Psychological Association Zero Tolerance Task Force, 2008; Stader, 2006).

Legal analysis

In order to conduct a legal analysis of a policy a starting framework should first be identified. For the most thorough and relevant analysis, the framework should meet at least two criteria. First, it should be standardized and well received in the legal community. Second, since the GFSA mandates punishment for violation of the policy, the framework must provide criteria for examining punishment

policies. The Model Penal Code developed by the American Law Institute (1962) meets those criteria as it is a widely accepted tool for standardizing the penal codes, and section 1.02 (a)(i) and (ii) of the code specifically outline criteria that a punishment policy should meet:

... (i) to render sentences in all cases within a range of severity proportionate to the gravity of offenses, the harms done to crime victims, and the blameworthiness of offenders; (ii) when reasonably feasible, to achieve offender rehabilitation, general deterrence, incapacitation of dangerous offenders, restoration of crime victims and communities, and reintegration of offenders into the law-abiding community, provided these goals are pursued within the boundaries of proportionality in subsection (a)(i) ... (§ 1.02 (a)(i) & (ii))

Blameworthiness and proportion. The first criteria for a punishment policy is that it should be able to assign blame to the correct perpetrator, and be “proportionate to the gravity of offenses ...” (§ 1.02 (a)(i)). The GFSA and zero-tolerance policies created from it are currently unable to satisfy this criterion. If mens rea is not required for punishment, there is no method in which to properly assign blame to the correct perpetrator. Using the previous example of the valedictorian, the student who placed the weapon in the valedictorian’s backpack would be the correct perpetrator, although this would likely not be the student punished because of the reliance on strict liability. It would appear to be irrational to expel a student who has no knowledge of possessing a weapon, since the punishment would not be proportionate to the offense.

Even with knowledge of possessing a weapon, there are situations in which punishment via expulsion may not be proportionate to the offense. For example, imagine a student who remembers halfway through a day at school that he forgot to remove a knife from his car. At that point he would have knowledge of possessing that weapon, but may not have intent to use the weapon for harm. It is arguable that it would not be proportionate to the offense to expel the student for simply being in possession of a weapon without intent or motive to use it. However, circuit court judges in *Bundick v. Bay City Independent School District* (2001) and *Butler v. Rio Rancho Public School Board of Education* (2003) did not agree with incorporating mens rea enough to rule in favor of its inclusion in zero-tolerance policies. Instead, the court opinion remained in favor of strict liability. However, a policy that has the potential to randomly assign punishment cannot, by nature, effectively act as a social control mechanism since the affected population has no means of avoiding punishment. Perpetrators and nonperpetrators alike would stand equal chance of being convicted under this type of policy. Therefore, what motivation would the affected population have to follow the rules?

General deterrence. Along with the ability to assign proper blame and punishment, the ability of the policy to act as

deterrence is crucial to punishment policies. The effect of zero-tolerance weapons policies on deterrence can easily be addressed by asking one question. Can a policy effectively be a deterrent if it assigns punishment randomly? In the example of the valedictorian the student was expelled because of actions of another student even without his knowledge. That student chose to frame the valedictorian for an unspecified reason, but he could have also chosen to set up any other student in that school the same day. For that reason, any student who would have went to school on that day had a chance of being expelled by no fault of their own. This once again supports the point that zero-tolerance policies have the possibility to assign punishment randomly. As previously mentioned, random punishment without knowing the action that resulted in punishment would logically not act as a deterrent for either the same individual or the student population in general.

Incapacitation. On the surface, the criteria of incapacitation appear to be effectively implemented by these policies, since they mandate expulsion with few exceptions. However, closer examination of this point illustrates that zero-tolerance policies may not be effective at incapacitation.

To properly incapacitate, the policy must remove perpetrators from the situation in which they appear to pose a danger, and restrain them until the imminent danger has subsided. In some situations zero-tolerance policies accomplish the first part of effective incapacitation policy (removal from the situation), but the policy also makes an assumption that a student will be able to be caught before using the weapon. The school shooting in Red Lake, Minnesota, and other school shootings, directly challenge this assumption given that the perpetrators started shooting immediately upon arriving at school. Therefore, in at least some situations, these policies may not effectively be able to remove a student from a potentially high risk situation since it assumes that students will bring a weapon to school before using it.

The second part of incapacitation policy that is assumed, is that students will be restrained until their immediate risk has subsided. However, as can be seen from the school shooting in Springfield, Oregon, an expulsion may actually serve as a stressor which can result in a more extreme form of violence. The perpetrator of the school shooting in Springfield, Oregon had been expelled before the shooting, and his expulsion has been connected to the shooting as a possible stressor preceding the event (Sanchez, 1998). Thus, if a policy cannot effectively remove a suspect from potentially dangerous situations, and restrain them while they pose the greatest risk, it cannot be argued that the policy is effective at incapacitation.

Restoration, rehabilitation, and reintegration. The three final areas that must be addressed in effective punishment policy are restoration, rehabilitation, and reintegration. Restoration with zero-tolerance weapons policy is almost

non-existent since the policy mandates a one year expulsion. The policy also does not directly address rehabilitation or reintegration, since the only requirement is expulsion, except under those circumstances previously mentioned. Although some may argue that states have implemented additions to the zero-tolerance weapons policy which may address rehabilitation and reintegration, the federal policy does not. Since it was the GFSA that originally mandated states adopt their own zero-tolerance weapons policy, and the original wording of the policy did not discuss rehabilitation and reintegration, it can be argued that there was no original intent in the federal policy to address these critical components of effective punishment policies.

The examination of the crucial aspects of punishment policy according to the Model Penal Code (American Law Institute, 1962) provides insight into the effectiveness of zero-tolerance policies created from the GFSA. These policies do not directly address reintegration, rehabilitation, and restoration, and is ineffective at incapacitation. Zero-tolerance weapons policies also fail to incapacitate since expulsion has been seen to be a major stressor, which could trigger more extreme forms of school violence. The policy also cannot act as a deterrent as it has the potential to be completely random, which illustrates the inability of the policy to correctly assign blame to perpetrators. Lastly, the punishment incurred by violating the policy is not proportionate to the offense. This point is further evidenced by the concurring court opinion of Judge Hamilton in *Ratner v. Loudoun County Public Schools* (2001), where the judges sided in favor of the use of zero-tolerance weapons policies, but stated, "The panic over school violence and the intent to stop it has caused school officials to jettison the common sense idea that a person's punishment should fit his crime in favor of a single harsh punishment . . ." (p. 5-6).

Recommendations

From the critiques offered in this article we have seen that zero-tolerance weapons policies are not empirically supported, theoretically sound, or supported by Model Penal Code (American Law Institute, 1962) criteria for punishment policies. However, there are several recommendations that could minimize the problems with the law and lead to wiser solutions for the safety and wellbeing of students.

These recommendations target principals who generally serve as the schools' chief administrative officers. They provide tools to properly exercise the discretionary power granted by zero-tolerance policies. First, administrators should require mens rea for expulsions. Before expelling a student for violating zero-tolerance policies, they should ascertain whether the student knew of being in violation of a rule, and whether there was knowledge about possessing a weapon. Second, other staff should be included in the expulsion process. Determining guilt and severity of threat can be time consuming and difficult. Other staff (i.e. teachers, school social workers) may have important information to help the process. Last, conduct a threat assessment (sub-

sequently discussed). Even if students know they possess a contraband item, a threat assessment will help determine the real intent and the level of threat posed.

One such threat assessment tool that could be beneficial for the chief administrative officer was originally developed for identifying school shooters (Reddy et al., 2001), and was field tested by Cornell et al. (2004). Most relevant to this analysis was that of the 188 student threats, only 3 students were expelled because of threats and none of the threats were carried out (Cornell et al., 2004). Every time a threat is levied at a student, the perpetrator of that threat must be assessment. Traditional zero-tolerance policies would have likely resulted in the expulsion of nearly every one of the 188 students who were accused of making threats. Therefore, the tool decreased the possible expulsions, and saved its use for only the most extreme cases. In other words, the school was protected, as evidenced by no threats being carried out, while only subjecting 3 of the 188 students to expulsion.

While chief administrative officers play a major role in the expulsion process, teachers also play a valuable role. Therefore, there are two major recommendations for teachers, who serve as frontline workers in schools. First, teachers should participate in the expulsion process. Provide the principal, or chief administrative officer, with information that can help determine mens rea or the level of threat the student poses. Second, advocate for the inclusion of mens rea and threat assessment in the expulsion process. These tools will help differentiate students who pose a credible threat from those that do not.

These five recommendations would help ensure that zero-tolerance weapons policies will have the opportunity to be a true deterrent. Punishment would no longer have the chance to be random, and it would become possible to assert social control via these policies. Students would be informed and understand that certain behaviors would lead to certain punishments. The critiques offered in this article have shown that not incorporating these recommendations cripples the ability for zero-tolerance policies to achieve their explicit goals as laid out by Senator Feinstein and Senator Dorgan.

Conclusion

As can be seen from the arguments presented in this article, zero-tolerance weapons policies that were conceived out of the passage of the Gun Free School Act of 1994 have not been empirically supported, are theoretically unsound, and fail to meet standardized criteria for punishment policy according to the Model Penal Code (American Law Institute, 1962). However, if some changes to the policy are made, including the application of mens rea, and the use of threat assessment tools, then it becomes possible for the policy to address the critiques leveled in this assessment. Baring these changes to zero-tolerance policy they will continue "... refuting the well established precept that judgments is the better part of wisdom", and be an excellent illustration

that indeed "The road to hell is paved with good intentions" (Ratner v. Loudon County Public Schools, p. 6).

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